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[TENTATIVE] ORDER SUSTAINING IN

PART AND OVERRULING IN PART PLAINTIFF'S DEMURRER TO DEFENDANT FCA US LLC'S
ANSWER

I. INTRODUCTION

This is an
action arising under the Song-Beverly Consumer Warranty Act concerning
Plaintiff Liliana Vargas's ("Plaintiff") purchase of a 2023 Jeep Grand
Cherokee. Plaintiff brings this action against Defendant FCA US LLC
("FCA").

On April 21, 2026, Plaintiff filed
the Complaint, asserting causes of action for breach of express warranty under
the Song-Beverly Act, breach of implied warranty, and violation of Civil Code
section 1793.2(b).

On May 22, 2026, FCA filed its Answer. On June 3, 2026,
Plaintiff filed the instant demurrer to FCA's Answer. FCA filed an opposition
on August 24, 2026, and Plaintiff filed a reply on September 4, 2026.

Meet and confer

Pursuant to Code of Civil Procedure
section 430.41, subdivision (a), the demurring party is required to meet and
confer with the party who filed the pleading at least five days before the
responsive pleading is due. This must occur in person, telephone or by video
conference with the aim of resolving any objections raised in the demurrer.

Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Here, Plaintiff's counsel declares that she emailed FCA's counsel regarding the grounds for the demurrer and requested a telephonic meet and confer. Plaintiff's counsel followed up on May 26, 2026, but received no response. (Souto Decl., ¶¶ 3-4.)

Although the parties did not meet and confer, the Court elects to address the demurrer on the merits.

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) "A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her." (Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85 (emphasis in original).) "The objection of uncertainty does not go to the failure to allege sufficient facts." (Brea v. McGlashan

(1934) 3 Cal.App.2d 454, 459.) “It goes to the doubt as to what the pleader means by the facts alleged.” (Id.) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (People v. Lim (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

III. ANALYSIS

Plaintiff

demurs to FCA’s Answer on the following grounds: (1) the Fourth Affirmative Defense for contributory negligence is barred as a matter of law; (2) the Third, Fifth through Twentieth, and Twenty-Second through Twenty-Fourth Affirmative Defenses fail to state facts sufficient to constitute a defense under Code of Civil Procedure sections 430.20(a) and 431.30(b), or are uncertain under section 430.20(b); (3) the Second and Twenty-First Affirmative Defenses fail to comply with Code of Civil Procedure section 458 or are otherwise barred; and (4) the Twenty-Fifth Affirmative Defense is improper and uncertain. (Demurrer, p. 2.)

As a preliminary matter, FCA states in opposition that it agrees to withdraw its contributory negligence, estoppel, waiver, and unclean hands defenses (Fourth, Ninth, Tenth and Twelfth Affirmative Defenses). (Opposition, p.2.) The Court therefore need not address the merits of the demurrer as to those defenses.

The remaining affirmative defenses

at issue are Nos. 2, 3, 5-8, 11, 13-25.

Nos. 2 and 21 - Statute of limitations

Plaintiff demurs to the Second and Twenty-First Affirmative Defenses, arguing that they improperly lump together various statutes of limitations and fail to allege sufficient facts to constitute a defense. Plaintiff further argues that FCA fails to identify the specific statutory subdivisions upon which it relies, as required by Code of Civil Procedure section 458. (Demurrer, p. 20.)

In opposition, FCA argues that statute of limitations is an affirmative defense that must be pleaded to avoid waiver and need not be pleaded with particularity or specific facts, so long as Plaintiff is placed on notice of the nature and source of the defense. (Opposition, p. 5.)

The Court agrees with Plaintiff. Code of Civil Procedure section 458 imposes a specific pleading requirement when a party relies upon a statute of limitations. Plaintiff points out that FCA identifies multiple statutory provisions without identifying the applicable subdivisions. Thus, the demurrer as to the Second and Twenty-First Affirmative Defenses is SUSTAINED with 20 days' leave to amend.

Nos. 3, 5-8, 11, 13, 15-20 - Defenses allegedly lacking ultimate facts

These defenses concern comparative fault, failure to mitigate damages, offset, express disclaimers, implied warranty, laches, abuse or failure to maintain, alteration of the product, proper repair and consent, compliance with industry standards, failure to provide a reasonable opportunity to repair, and failure to state a cause of action for civil penalties.

Plaintiff demurs to this set of defenses primarily on the ground that they fail to allege sufficient facts to constitute a defense. Plaintiff argues that these defenses constitute "new matter" under Code of Civil Procedure section 431.30(b) but merely state legal conclusions without identifying the facts supporting their application to this

action. (Demurrer, pp. 9-20.)

In opposition, FCA argues that the challenged defenses are primarily denials or traverses of allegations in the Complaint rather than “new matter.” FCA contends that where a defense merely disputes an essential allegation of the complaint, additional facts need not be pleaded. FCA further argues that, when the Answer is read together with the Complaint, the defenses provide Plaintiff sufficient notice of the issues being disputed. (Opposition, pp. 3-5.)

The Court agrees with Plaintiff in part. While an affirmative defense based on new matter must allege sufficient facts to constitute a defense, not every defense requires additional supporting facts. Where a defense simply disputes an essential allegation of the Complaint, it constitutes a traverse rather than new matter. Applying this distinction, the Court finds as follows.

The demurrer to Nos. 8,13,17, 18, 19, 20 are OVERRULED because these defenses largely dispute allegations Plaintiff must establish to prevail and therefore operate as denials or traverses rather than new matter requiring additional supporting facts. FCA has sufficiently placed Plaintiff on notice of the issues being disputed.

The demurrer to Nos 3, 5, 6, 7, 11, 15 and 16 are SUSTAINED with 20 days’ leave to amend because these defenses assert new matter beyond merely denying the allegations of the Complaint, but FCA has not alleged sufficient ultimate facts to give Plaintiff fair notice of the factual basis for the defenses.

No. 14 - Lack of standing

Plaintiff demurs to this defense, arguing that it is uncertain and constitutes new matter that FCA fails to support with sufficient factual allegations. (Demurrer, p. 14.)

FCA does not specifically address this defense in opposition. The Complaint expressly alleges that Plaintiff acquired the subject vehicle in California on April 9, 2024. (Complaint, ¶ 6.) Because the defense can be read together with the Complaint as a traverse of that allegation, rather than new matter requiring additional supporting facts,

the Court OVERRULES the demurrer to Affirmative Defense No.14.

Nos. 22-24 - Civil penalty/prelitigation requirements

This group of affirmative defenses concerns failure to serve written notice, failure to comply with prelitigation notice requirements, and the alleged unconstitutionality of civil penalties. Plaintiff demurs to these defenses, arguing that they merely state legal conclusions, fail to allege sufficient facts to constitute a defense, and constitute “new matter” requiring supporting factual allegations. (Demurrer, pp. 18-19.)

The Court finds that Nos. 22 and 23 are sufficiently plead. No. 22 alleges Plaintiff failed to provide written notice required by Civil Code section 1794(e)(3), and No. 23 alleges that Plaintiff failed to comply with the prelitigation requirements of Code of Civil Procedure section 871.20 et seq. These defenses sufficiently identify the statutory requirements FCA contends Plaintiff failed to satisfy and place Plaintiff on notice of the basis for the defenses. The demurrer as to Nos. 22 and 23 are OVERRULED.

As to No. 24, it merely alleges that the imposition of a civil penalty would violate FCA's rights under the federal and California Constitutions without identifying the constitutional right implicated or the basis for the alleged violation. Thus, the demurrer as to No. 24 is SUSTAINED with 20 days' leave to amend.

No. 25- Reservation of rights

This affirmative defense concerns FCA's reservation of the right to assert additional defenses. Plaintiff demurs to this defense, arguing that a party cannot reserve the right to assert future defenses without actually pleading them, rendering it an improper affirmative defense. (Demurrer, p. 20.)

The Court agrees. FCA's reservation of right to assert additional defenses does not constitute an affirmative defense. Thus, the demurrer as to No. 25 is SUSTAINED without leave to amend

IV. ORDER

The Court SUSTAINS with 20 days' leave to amend the demurrer as to Affirmative Defense Nos. 2, 3, 5, 6, 7, 11, 15, 16, 21, and 24.

The Court SUSTAINS without leave to amend the demurrer as to Affirmative Defense No. 25. The Court OVERRULES the demurrer as to Affirmative Defense Nos. 8, 13, 14, 17, 18, 19, 20, 22, and 23.

Nos. 4, 9, 10, and 12 is MOOT because FCA has agreed to withdraw those defenses

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Plaintiff is to give notice.

Dated: September 14, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT